

Form No:HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

RAWALPINDI BENCH, RAWALPINDI

JUDICIAL DEPARTMENT

W.P.No.1846 of 2026

Askari Bank Limited Vs. Banking Mohtasib Pakistan & others

S.No. of order/ proceeding	Date of order/ Proceeding.	Order with signature of Judge, and that of parties or counsel, where necessary.
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03.06.2026	M/s.Ali Asghar Pasha, Imran Shahid and M.Jilal, Advocates for the petitioner.
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Through this Constitutional Petition, the petitioner-Bank has assailed the order dated 26.12.2025 passed by the learned Banking Mohtasib Pakistan whereby the complaint of respondent No.3 was accepted and the petitioner was directed to credit an amount of Rs.1,370,253/- in the account of respondent No.2.

2. Briefly, respondent No.2 maintained a bank account with the petitioner-Bank. On 28.11.2022, certain online transactions amounting to Rs.1,370,253/- were carried out through various electronic payment channels including IBFT, RAAST and FBR payment mechanisms. Respondent No.2 disputed the said transactions and lodged a complaint before the petitioner-Bank. Upon internal investigation, the petitioner concluded that the transactions had been conducted through authenticated digital banking credentials linked with the account of respondent No.2 and, therefore, treated the transactions as customer-authorized.

3. Being dissatisfied, respondent No.2 approached the learned Banking Mohtasib Pakistan. The complaint was accepted vide order dated 05.12.2024. The petitioner thereafter filed a representation before the President of Pakistan, which was dismissed on 18.07.2025. Feeling aggrieved, the petitioner filed W.P.

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No.2634/2025, which was allowed by this Court vide judgment dated 11.09.2025. The matter was remanded to the learned Banking Mohtasib for a fresh decision after affording due opportunity to the parties and after obtaining the relevant record.

4. After remand, the learned Banking Mohtasib again accepted the complaint through order dated 26.12.2025, which has now been challenged through the instant petition.

5. Learned counsel for the petitioner submits that the learned Banking Mohtasib failed to comply with the directions contained in the remand order of this Court and decided the matter without conducting a meaningful inquiry. It is argued that the relevant record from beneficiary banks was not obtained and the findings of the petitioner's internal investigation were ignored. He further contends that the burden of proof was wrongly shifted upon the petitioner-Bank and, therefore, the impugned order is liable to be set aside.

6. Heard and perused.

7. At the very outset, learned counsel for the petitioner was asked to satisfy the Court regarding the maintainability of the instant petition in the presence of an alternate statutory remedy. In response, learned counsel for the petitioner failed to satisfy this court however contended only that the impugned order has been passed in disregard of the directions issued by this Court while remanding the matter and, therefore, the petition may be treated as one seeking enforcement of the remand order.

8. The contention is misconceived and cannot be accepted. Firstly, the present proceedings have been instituted as a Constitutional Petition under Article 199 of the Constitution and not as a petition seeking

initiation of contempt proceedings under the Contempt of Court Ordinance, 2003. A litigant cannot, by mere argument, convert one statutory proceeding into another when the law prescribes distinct jurisdictions, procedures, and prerequisites for each. Moreover, after the insertion of clause (1A) in Article 199 of the Constitution through the Constitution (Twenty-Sixth Amendment) Act, 2024, the constitutional jurisdiction of the High Court remains confined to matters properly brought before it in accordance with law and does not permit expansion of jurisdiction in disregard of the statutory scheme established by the legislature. Secondly, after the remand order dated 11.09.2025, a fresh adjudicatory order was passed by the Banking Mohtasib. Such order carries with it its own legal consequences and remains subject to the statutory appellate or representative mechanism specifically provided by law. Whether the Banking Mohtasib correctly appreciated the remand directions, complied therewith, or otherwise committed any legal error are all matters which fall within the scope of examination by the competent statutory forum.

9. It is by now a settled principle of constitutional jurisprudence that the extraordinary jurisdiction of the High Court under Article 199 of the Constitution is discretionary in nature and ordinarily cannot be invoked where an adequate, efficacious, and alternate statutory remedy is available. Section 14 of the Federal Ombudsmen Institutional Reforms Act, 2013, read with the relevant statutory framework governing the Banking Mohtasib, provides a complete and specialized mechanism whereby any person aggrieved by an order of the Banking Mohtasib may file a representation before the President of Pakistan within the prescribed period.

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10. A closer examination of Section 14 of the Federal Ombudsmen Institutional Reforms Act, 2013 further reinforces the above conclusion. The provision does not merely create a formal right of representation; rather, it establishes a complete, specialized and time-bound remedial framework against decisions, findings, recommendations and orders passed by an Ombudsman. Any person aggrieved by an order of the Banking Mohtasib may, as of right, file a representation before the President of Pakistan within thirty days of such order. More importantly, subsection (2) of Section 14 provides immediate statutory protection by stipulating that upon filing of such representation, the operation of the impugned order, decision, findings or recommendations shall remain suspended for a period of sixty days. The legislative scheme is further strengthened by subsection (5), which obligates a decision on the representation within ninety days. Thus, the statute itself furnishes not only a forum of redress but also an expeditious and efficacious mechanism capable of safeguarding the rights of an aggrieved party during the pendency of proceedings. Such a comprehensive remedial structure manifests a conscious legislative intent that grievances arising out of decisions of the Banking Mohtasib should, in the first instance, be examined and resolved within the specialized hierarchy created by law. Consequently, permitting direct recourse to constitutional jurisdiction despite the availability of such a prompt, effective and self-contained remedy would undermine the statutory framework and render the safeguards and timelines expressly provided by the legislature largely redundant.

11. Furthermore, the petitioner-Bank's direct invocation of the constitutional jurisdiction of this Court appears to be an attempt to bypass the statutory mechanism and the limitation period specifically

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prescribed by the legislature for filing a representation before the President of Pakistan. It is a settled principle of statutory interpretation that where the law prescribes a particular forum, mode and timeframe for the performance of an act, the same must be adhered to and cannot ordinarily be circumvented by resort to an alternative procedure of the litigant's own choosing. The doctrine of exhaustion of remedies, repeatedly recognized by the august Supreme Court of Pakistan, requires that a litigant must first avail and exhaust the remedy provided under the relevant statute before seeking recourse to another jurisdiction. In Sana Jamali v. Mujeeb Qamar and another (2023 SCMR 316), it was held that where a special law creates a forum and provides a complete remedial structure, disputes falling within the ambit of such forum must be resolved through the remedies provided therein and bypassing or circumventing the statutory mechanism is not permissible. Likewise, in Cantonment Bord Peshawar, Peshawar Cantt. through Executive Officer and another vs. Messrs RACO Advertisers and another (2023 SCMR 2075), the Supreme Court reaffirmed that the doctrine of exhaustion of remedies prevents a litigant from seeking a remedy in a new court or jurisdiction until the remedies available under the original statutory framework have been fully pursued and exhausted. In the present case, the law has entrusted the office of the President of Pakistan with the authority to examine the legality, propriety, jurisdictional competence and merits of orders passed by the Banking Mohtasib. The statutory forum is neither illusory nor ineffective; rather, it constitutes an integral component of the legislative scheme governing adjudication of banking complaints. The petitioner, instead of availing the remedy expressly provided by law, has chosen to directly approach this Court, thereby seeking to convert the constitutional jurisdiction under Article 199 of the Constitution into a

substitute for the statutory forum. Such a course is legally impermissible and, if countenanced, would not only defeat the legislative intent but would also erode the settled principle that constitutional jurisdiction is not to be exercised as a court of first appeal where the legislature has already provided a complete, adequate and efficacious remedial mechanism. The extraordinary constitutional jurisdiction of this Court cannot be invoked to circumvent statutory limitations, avoid prescribed forums, or obtain indirectly what the law requires to be pursued directly through the procedure specifically enacted by the legislature.

12. The object behind the creation of such specialized forums is to ensure that disputes falling within their domain are first examined by the authorities possessing the requisite expertise and statutory competence. Permitting parties to bypass such forums would defeat the legislative intent and render the statutory remedy nugatory.

13. The petitioner Bank had previously availed the said remedy against the earlier order of the Banking Mohtasib. Once a fresh order has been passed after remand, such fresh order again becomes amenable to the statutory remedy prescribed by law. The petitioner cannot circumvent the statutory forum merely because it considers the impugned order to be erroneous or because it alleges non-compliance with observations made in the remand order.

14. The petitioner has failed to demonstrate any exceptional circumstance warranting interference in constitutional jurisdiction despite the availability of an alternate remedy. No case of patent lack of jurisdiction, coram non judice proceedings, violation of fundamental rights of such magnitude, or any other extraordinary

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circumstance has been established which would justify bypassing the statutory remedy available under the law.

15. For the foregoing reasons, the present writ petition is not maintainable and the same is dismissed in *limine*. However, petitioner Bank may avail its appropriate remedy before the appropriate forum.

(Syed Ahsan Raza Kazmi)
Judge

Approved for reporting.

Judge

Amjad

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